

24STLC05418 24STLC05418

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-02

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Case Number: 24STLC05418 Hearing Date: July 2, 2026 Dept: 26

TENTATIVE RULING:

Plaintiffs Montana Jacobowitz,

Pearl H. Jacobowitz, and Dakota Dusty Zeigerman-Jacobowitz's Motion to Reconsider and Vacate the January 27, 2026 Order and the March 16, 2026 Order is denied.

Analysis:

On July 30, 2024, Plaintiffs Montana

Jacobowitz, Pearl Jacobowitz, and Dakota Dusty Zeigerman-Jacobowitz

("Plaintiffs") filed the instant action for breach of contract, fraud, and

unfair business practices, against Defendant Bubble Beauty, Inc. ("Defendant BBI), Bubble Skin Care ("Defendant BSC") and Shai Eisenman ("Defendant Eisenman").

On January 31, 2025, Defendant BBI

filed a Motion to Stay or Dismiss Action on Grounds of Forum Non Conveniens.

The Motion to Dismiss was granted on May 6, 2025 and an order of dismissal with respect to Defendant BBI was entered on the same day. (Minute Order, 05/06/25; Order – Dismissal, 05/06/25.)

On September 9, 2025, the Court

denied Defendant BBI's Motion for Attorney's Fees. (Minute Order, 01/27/26.)

The action was scheduled for trial on January 27, 2026 as to any parties remaining in the case. On that date, when no party

appeared, the Court vacated the trial date and ordered the Complaint filed by Plaintiffs dismissed without prejudice pursuant to Code of Civil Procedure

Section 581(b)(3). (Minute Order, 01/27/26.) On February 4, 2026, Plaintiffs filed a Motion for Court to Vacate January 27, 2026 Court Order. The Court denied the Motion to Vacate on March 16, 2026. (Minute Order, 03/16/26.)

On March 30, 2026, Plaintiffs filed the instant Motion to Reconsider and Vacate the January 27, 2026 Order and the March 16, 2026 Order. The Motion was served on Defendants through their counsel by electronic mail on the same day. No opposition has been filed to date.

Discussion

Plaintiffs move the Court for reconsideration of its orders dated January 27, 2026 and March 16, 2026. The Motion appears to be made pursuant to Code of Civil Procedure section 473, subdivision (d), on the grounds that the Court may vacate any void judgment or order or to correct clerical mistakes in judgments or orders. However, Plaintiffs cite no legal authority for reconsideration of earlier orders. The Court already ruled on Plaintiffs' Motion to Vacate the order dated January 27, 2026. Reconsideration of that order has not been shown to be proper in the instant Motion.

When a party

seeks the same relief that was previously denied, it must bring a renewed motion pursuant to Code of Civil Procedure section 1008, subdivision (b). (California Correctional Peace Officers Ass'n v. Virga (2010) 181 Cal.App.4th 30, 43, fn. 11; see also Tate v. Wilburn (2010) 184 Cal.App.4th 150, 156-157.)

When a motion has been denied in whole or in part, the moving party may apply again for the same relief at a later time only upon "new or different facts, circumstances or law." (Code Civ. Proc., § 1008, subd. (b); see Graham v. Hansen (1982) 128 Cal.App.3d 965, 969-970.) This is described as a jurisdictional requirement for the Court to grant reconsideration. Also, the statute requires the moving party "to show a satisfactory explanation for failing to provide the evidence earlier, which can only be described as a strict requirement of diligence," the purpose of which is to incentivize parties "to efficiently marshal their evidence." (Baldwin v. Home Sav. of America (1997) 59 Cal.App.4th 1192, 1199 [citing Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 689-690].)

The instant

Motion for Reconsideration is neither brought pursuant to Code of Civil Procedure section 1008, nor fulfills its mandatory statutory requirements.

Therefore, the Court has no jurisdiction to grant the requested relief.

On the

merits, the Motion again argues that the dismissal on January 27, 2026 may be misunderstood as a second dismissal of the entire action, triggering the “two-dismissal rule.” (Mot. at 3.) The Court has already clarified the scope of the dismissal on each date. (Minute Order, 3/16/2026.)

Conclusion

Plaintiffs Montana Jacobowitz,
Pearl H. Jacobowitz, and Dakota Dusty Zeigerman-Jacobowitz’s Motion to
Reconsider and Vacate the January 27, 2026 Order and the March 16, 2026 Order is
denied.

Judicial Assistant to give notice.